

23SMCV05984 23SMCV05984

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-11

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This is an application to exclude plaintiff's supplemental expert Lee. Lee was designated in a supplemental designation to testify about accident reconstruction and causation. In the original designation, plaintiff designated Bourdage as an accident reconstruction expert. The Code is clear that designation of a supplemental expert is not proper if an expert was designated on the same subject in the initial designation.

And the court notes that there is a dueling motion by plaintiff regarding a defense witness set for August 17, 2026, as well as a motion to continue the trial.

As it turns out, the court will likely be in trial starting next week for a trial that will likely last 3 weeks or so. Given that, and assuming it happens, the court will need to move this case. That also has the benefit of allowing all discovery motions to be heard on regular notice. The court will therefore CONTINUE this application until August 17, 2026. If the court is in fact engaged in trial, then the current trial date can be vacated and this ex parte will be denied without prejudice to a regularly noticed motion. The court does not intend to hear argument on this matter today.